

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Browne	Team: Team # 6	CCRB Case #: 201311831	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 12/19/2013 1:20 PM	Location of Incident: Northeast corner of Nostrand Avenue and Lefferts Avenue	18 Mo. SOL 6/19/2015	Precinct: 71
Date/Time CV Reported Thu, 12/19/2013 2:23 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 12/19/2013 2:23 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eliot Arias	18208	936140	NARCBBS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Alan Gaspard	00000	904006	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . POM Eliot Arias	Abuse: PO Eliot Arias stopped § 87(2)(b)	A . Exonerated
B . POM Eliot Arias	Abuse: PO Eliot Arias frisked § 87(2)(b)	B . Substantiated
C . POM Eliot Arias	Abuse: PO Eliot Arias searched § 87(2)(b)	C . Unsubstantiated
D . POM Eliot Arias	Abuse: PO Eliot Arias refused to provide his name and shield number to § 87(2)(b)	D . Unsubstantiated

Case Summary

On December 19, 2013, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

At approximately 1:20 p.m. on December 19, 2013, § 87(2)(b) was stopped on the northeast corner of Nostrand Avenue and Lefferts Avenue in Brooklyn, resulting in the following allegations:

- **Allegation A—Abuse of Authority: PO Eliot Arias stopped** § 87(2)(b) § 87(2)(g) it is recommended that **Allegation A** be closed as *Exonerated*.
- **Allegation B—Abuse of Authority: PO Eliot Arias frisked** § 87(2)(b) § 87(2)(g) is recommended that **Allegation B** be closed as *Substantiated*.
- **Allegation C—Abuse of Authority: PO Eliot Arias searched** § 87(2)(b)
- **Allegation D—Abuse of Authority: PO Eliot Arias refused to provide his name and shield number to** § 87(2)(b) § 87(2)(g) Therefore, it is recommended that **Allegations C and D** be closed as *Unsubstantiated*.

§ 87(2)(b) chose to have his complaint investigated rather than mediated, § 87(2)(b)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- *At the time of the incident,* § 87(2)(b) *was a* § 87(2)(b) *black male* § 87(2)(b) *, and had black hair and brown eyes.*
- § 87(2)(b) *was unemployed at the time of the incident.*

CCRB Statement

§ 87(2)(b) was interviewed in person at the CCRB on January 7, 2014 (encl. 7A-7F). At around 1:20 p.m. on December 19, 2013, § 87(2)(b) was walking on the northeast corner of Nostrand Avenue and Lefferts Avenue in Brooklyn. He had just come from Nostrand Deli Farms, a convenience store at 1040 Nostrand Avenue, located about half a block away. § 87(2)(b) was wearing a black leather coat, dark pants, and red and black headphones over his ears. He was carrying a pen in his right front pant pocket, his keys in his left front pant pocket, and his wallet in his back left pant pocket.

When § 87(2)(b) reached the corner, an officer—identified through investigation as PO Eliot Arias of Narcotics Borough Brooklyn South—approached from behind and told him to stop and get against the nearby wall. § 87(2)(b) asked if there was a problem, but PO Arias merely repeated his command and instructed PO Arias to place his hands behind his back. § 87(2)(b) immediately complied and was handcuffed.

§ 87(2)(b) asked PO Arias to identify himself. He also asked why he was being stopped and whether PO Arias was looking for a specific individual. PO Arias did not answer his questions, but instead asked if § 87(2)(b) had anything in his pockets. § 87(2)(b) stated that he did not, to which PO Arias replied that he was going to search them, so he had better tell him if there is anything ahead of time. § 87(2)(b) reiterated that he had nothing. PO Arias then patted over each of § 87(2)(b)'s pockets before fully entering both his front and back pant pockets on both sides, as well as his jacket pockets on both sides. PO Arias removed several items, though § 87(2)(b) did not recall which ones, and immediately replaced them back in his pockets. Though he did not recall definitively, PO Arias may have asked him if he had any drugs.

PO Arias moved several feet away from § 87(2)(b) and began speaking on his cell phone, though he did not hear any of his conversation. When he finished, PO Arias asked § 87(2)(b) from where he had just come. § 87(2)(b) stated that he came from the store. PO Arias again asked if he had anything on him, to which § 87(2)(b) stated that he did not.

PO Arias subsequently escorted § 87(2)(b) across Nostrand Avenue and walked northbound towards the convenience store. They stopped approximately midway along the block, where they encountered another officer—identified through investigation as Lt. Alan Gaspard, also of Narcotics Borough Brooklyn South—standing next to a black unmarked police car. § 87(2)(b) again asked why he was being detained and requested that both officers identify themselves by name and shield number. Although PO Arias never provided this information, Lt. Gaspard identified himself by name and stated that he was a lieutenant. Lt. Gaspard also explained that they were conducting an investigation and that they had identified him by his red headphones, though he did not provide any further details.

PO Arias subsequently asked § 87(2)(b) for identification. § 87(2)(b) told PO Arias it was in his wallet in his back pocket. PO Arias retrieved the wallet, removed his driver's license, replaced the wallet, and brought the license to the car. When he returned, Lt. Gaspard ordered PO Arias to release § 87(2)(b) so PO Arias removed the handcuffs and released § 87(2)(b).

NYPD Statements

Subject Officer: PO ELIOT ARIAS

- *At the time of his interview, PO Arias was a § 87(2)(b) Hispanic male § 87(2)(b), and had black hair and brown eyes.*
- *On December 19, 2013, PO Arias was assigned to narcotics enforcement, working in the leader car with Lt. Alan Gaspard and PO Ronald Ogilus, who has since been promoted to the rank of detective. He worked from 9:27 a.m. to 11:45 p.m., was dressed in plainclothes, and was assigned to an unmarked black Toyota § 87(2)(e).*

Memo Book

PO Arias recorded in his memo book (encl. 8A-C) that at 1:20 p.m., he stopped one male at Nostrand Avenue and Lefferts Avenue who fit the description of a 5'10" tall black male with

orange headphones. § 87(2)(b) § 87(2)(b) was stopped for suspicion of criminal sale of marijuana. At 1:35 p.m., a warrant check returned negative results § 87(2)(e), § 87(2)(f). The stop was corrected as a non-crime (10-91).

CCRB Statement

PO Arias was interviewed at the CCRB on July 9, 2014 (encl. 8D-F). At approximately 1:20 p.m. on December 19, 2013, PO Arias, PO Ronald Ogilus, and Lt. Gaspard were parked in an unmarked black Toyota outside of Lenny's Pizza, located at 1046 Nostrand Avenue in Brooklyn. They were there to investigate drug sales at that location § 87(2)(e), § 87(2)(f). The pizzeria, the liquor store directly next door, and convenience store directly next to that are all chronic sources of complaints regarding drug sales.

§ 87(2)(e), § 87(2)(f)

Although he did not see either suspect exit the pizzeria, PO Arias did not want to lose them, so he quickly suggested that he pursue the dealer while Lt. Gaspard and PO Ogilus pursue the buyer. All parties agreed, so PO Arias exited the car, crossed to the east side of Nostrand Avenue, and headed southbound towards Lefferts Avenue.

§ 87(2)(e), § 87(2)(f)

When he reached the northeast corner of Lefferts Avenue several seconds later, he saw § 87(2)(b) walking eastbound § 87(2)(e), § 87(2)(f)

PO Arias approached him, held up his shield, which was hanging around his neck, and identified himself as a police officer. PO Arias then asked § 87(2)(b) how long he had been there. § 87(2)(b) replied that he had been there for a couple minutes.

PO Arias notified § 87(2)(b) that he was conducting an investigation and requested that he follow him across the street. § 87(2)(b) seemed angry, asking why he was being questioned and refusing to comply. PO Arias § 87(2)(e), § 87(2)(f)

§ 87(2)(b) notified him that if he had not done anything wrong, he would not have anything to worry about. PO Arias requested that § 87(2)(b) follow him at least one more time, but § 87(2)(b) continued to refuse. PO Arias described § 87(2)(b)'s demeanor as defensive and agitated.

Given the refusals to cooperate, PO Arias decided to frisk § 87(2)(b) for weapons to ensure his own safety and guided him towards the nearby wall. § 87(2)(b) physically complied, but asked multiple times why he was being frisked. Without responding, PO Arias patted down the back of his waistband and over his back pants pockets, asked him to turn around, and then patted down the front of his waistband and over his front pants pockets. PO Arias saw nothing other than the rectangular outline of what he believed to be § 87(2)(b)'s wallet in one of the pockets. He still believed the object to be a wallet after frisking the pocket and he ultimately confirmed that it was,

in fact, a wallet when § 87(2)(b) removed it later on. PO Arias did not see or feel anything resembling a weapon. He did not enter any pockets or search any part of § 87(2)(b)'s person.

PO Arias again requested that § 87(2)(b) follow him across the street. However, § 87(2)(b) again refused to do so. § 87(2)(e), § 87(2)(f) PO Arias tried to call Lt. Gaspard on his cellphone, but Lt. Gaspard did not answer. As he did not want § 87(2)(b) to escape without conducting a thorough investigation, PO Arias placed his hands behind his back and handcuffed him. § 87(2)(b) physically complied when being handcuffed, but again questioned PO Arias' actions.

PO Arias then escorted § 87(2)(b) across the street and brought him to the police car where Lt. Gaspard was waiting. § 87(2)(e), § 87(2)(f) PO Arias removed § 87(2)(b)'s handcuffs and explained that he was not the person they were looking for.

PO Arias then requested § 87(2)(b)'s identification, which he provided. PO Arias did not remove § 87(2)(b)'s wallet from his pocket in order to obtain his identification. PO Arias then completed a stop and frisk report. When informed that all requests for UF-250 reports returned negative results, PO Arias stated that he completed the report, had Lt. Gaspard sign it, and later submitted it to the 71st Precinct for filing. At some point before leaving, § 87(2)(b) requested the names and shield numbers of both officers. PO Arias verbally provided his name and shield number, and Lt. Gaspard provided his name, as he has no shield number. § 87(2)(b) departed and the incident concluded. The actual seller involved in the narcotics exchange was never apprehended.

Witness Officer: LT. ALAN GASPARD

- *At the time of his interview, Lt. Gaspard was a § 87(2)(b) black male § 87(2)(b), and had black hair and brown eyes.*
- *On December 19, 2013, Lt. Gaspard worked the same tour and assignment PO Arias.*

Memo Book

Lt. Gaspard recorded in his memo book (encl. 9A-C) that at 1:20 p.m., he was in the vicinity of the Nostrand Avenue plan and received positive results with one c-summons issued.

CCRB Statement

Lt. Gaspard was interviewed at the CCRB on July 9, 2014 (encl. 9D-E). § 87(2)(g)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b).

Because the officers subsequently separated, Lt. Gaspard did not witness PO Arias' initial actions, nor did he see him stop, frisk, or search § 87(2)(b). Instead, Lt. Gaspard and PO Ogilus had apprehended the unidentified buyer near the entrance to the pizzeria, so PO Ogilus detained him inside the location. A warrant check was run for the buyer and he was issued a summons.

Regardless, when PO Arias returned to the police car parked outside of the pizzeria, Lt. Gaspard saw that the handcuffed § 87(2)(b) closely matched the description provided, most notably in

that he was wearing orange headphones. Lt. Gaspard immediately stated his name and calmly explained that they had received complaints regarding narcotics sales in the vicinity and were conducting an investigation. § 87(2)(b) seemed understanding and remained calm throughout the conversation. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) Lt. Gaspard apologized to him for the detainment and told him that he was free to leave.

Lt. Gaspard did not recall § 87(2)(b) ever requesting either his or PO Arias' name or shield number, and did not recall PO Arias providing any such information. Following § 87(2)(b)'s release, Lt. Gaspard instructed PO Arias to fill out a stop and frisk report for § 87(2)(b) which he subsequently signed.

NYPD Documents

Related EVENT Report

EVENT #§ 87(2)(b) (encl. 11A-E) was generated as a result of this incident. At 1:44 p.m. on December 19, 2013, the Organized Crime Control Bureau operating in the 71st Precinct performed a visibility patrol at 1046 Nostrand Avenue and requested a warrant check. The EVENT was closed with a summons issued. There is no indication that any other report was prepared.

Stop and Frisk Report

A request to MAS for any computerized stop and frisk report completed for § 87(2)(b) on December 19, 2013, as well as the computerized stop and frisk log for that day returned no results (encl. 16F). Requests to the 71st Precinct (encl. 16I), Narcotics Borough Brooklyn South (encl. 16G), and Patrol Borough Brooklyn South (encl. 16J) for any handwritten stop and frisk report completed for § 87(2)(b) as well as for any handwritten UF-250 log on the aforementioned day indicated that no such reports were on file.

Status of Civil Proceedings

- § 87(2)(b) has not filed a notice of claim with the City of New York as of August 5, 2014 with regard to the incident (encl. 15a).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Civilian's CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 4A).

Subject Officer's CCRB History

- PO Arias has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 3A).

Conclusion

Identification of Subject Officer

§ 87(2)(b) stated that the officer who stopped, frisked, and searched him was the same officer who refused to provide his name and shield number in the presence of a lieutenant. PO Arias acknowledged interacting with § 87(2)(b) generally as described and recorded the incident in his memo book. Lt. Gaspard corroborated PO Arias' role in § 87(2)(b)'s apprehension and was present for their subsequent conversation. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g) [REDACTED]

Investigative Findings and Recommendations

Allegation A—Abuse of Authority: PO Eliot Arias stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped and handcuffed on the northeast corner of Lefferts Avenue and Nostrand Avenue after having immediately walked southbound from a convenience store about half a block away on Nostrand Avenue. According to both PO Arias and Lt. Gaspard—who were sitting in a police vehicle directly outside of a pizzeria located two buildings next door to that convenience store—§ 87(2)(e), § 87(2)(f)

Although neither officer saw the suspect leave the pizzeria, they agreed that PO Arias would pursue the seller, so he immediately exited the vehicle, crossed the street and saw § 87(2)(b) a six foot one inch tall black male with orange headphones—walking eastbound on the corner of Lefferts Avenue and Nostrand Avenue.

When an officer receives a radio report of an observed crime and its perpetrator, that officer is allowed to stop a suspect under the following circumstances: the suspect generally matches the description of the perpetrator, the suspect is within close proximity to the location of the crime, and a short period of time has elapsed between the commission of the crime and the detainment of the suspect. *People v. Bennett*, 37 A.D.3d 483 (2nd Dept. 2007).

[illegible]

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as *Exonerated*.

Allegation B—Abuse of Authority: PO Eliot Arias frisked § 87(2)(b)

§ 87(2)(b) alleged that PO Arias immediately instructed him to stand against a wall, handcuffed him, and frisked his pants and jacket pockets. PO Arias maintained that he first questioned § 87(2)(b) and asked him to follow him across the street in order to assist with the investigation. § 87(2)(b) stated more than once that he would not follow and asked why he was being stopped. Given his verbal refusals to comply and his defensive tone of voice, PO Arias decided to frisk § 87(2)(b) in order to ensure his own safety, though he acknowledged that he did not suspect § 87(2)(b) of having any weapons, nor did he see or feel any bulge or outline other than a rectangle in one of § 87(2)(b)'s pockets, which PO Arias believed to be a wallet. At no point during the incident did § 87(2)(b) ever physically resist or make any threatening movements. § 87(2)(e), § 87(2)(f)

In order to frisk an individual, an officer must have reasonable suspicion to believe either that the individual is in possession of a weapon or, in the case of a lawful detainment for questioning, that he is in danger of physical injury by virtue of the detainee being armed. *People v. DeBour*, 40 N.Y.2d 210 (1976).

§ 87(2)(e), § 87(2)(f), § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as *Substantiated*.

Allegation C—Abuse of Authority: PO Eliot Arias searched § 87(2)(b)

Allegation D—Abuse of Authority: PO Eliot Arias refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that PO Arias asked him if he had anything in his pockets and warned him that he was going to search them. Although § 87(2)(b) denied having anything illegal, PO Arias frisked the outside of both his pants and jacket pockets before entering each pocket, temporarily removing unspecified personal items, and immediately replacing those items. Shortly before § 87(2)(b) was released but while he was still handcuffed, PO Arias removed his wallet from one of his pockets and obtained his identification, which he took to the police car. Additionally, § 87(2)(b) maintained that he requested PO Arias' name and/or shield number at multiple points throughout the incident, including during the initial stop as well as after he was escorted back to Lt. Gaspard. Although Lt. Gaspard provided his name, PO Arias never provided any information.

§ 87(2)(g) PO Arias asserted that although he frisked the outside of § 87(2)(b)'s pockets and waistband, he never entered any pockets, removed any items, or instructed § 87(2)(b) to remove any items. After PO Arias uncuffed § 87(2)(b) and requested his identification, § 87(2)(b) voluntarily removed his wallet from his own pocket and handed his license to PO Arias. PO Arias confirmed that § 87(2)(b) requested his name and shield number at the police car, but asserted that he verbally provided both pieces of information. Meanwhile, Lt. Gaspard did not witness or learn of any of PO Arias' initial interaction with § 87(2)(b) but maintained that he never saw PO Arias enter any of § 87(2)(b) pockets or remove any objects from his person. Lt. Gaspard did not recall hearing § 87(2)(b) ever request either officer's name or shield number. Although he provided his own name, he did not recall PO Arias ever providing his information.

§ 87(2)(g)

_____ it is recommended that **Allegations C and D** be closed as ***Unsubstantiated***.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date